

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Joshua Richardson	Team: Squad #08	CCRB Case #: 201709087	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 10/27/2017 11:35 PM	Location of Incident: Pitkin Avenue and Thatford Avenue; Sutter Avenue between Junius Street and Van Sinderen Avenue	18 Mo. SOL 4/27/2019	Precinct: 73		
Date/Time CV Reported Fri, 10/27/2017 11:35 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 11/02/2017 11:25 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Gary Vanzanten	03736	934234	PSA 2
2. POM Christophe Desimone	06317	958495	PSA 2
3. POM Ibrahim Adam	20396	958214	PSA 2

Officer(s)	Allegation	Investigator Recommendation
A . POM Christophe Desimone	Abuse: On Pitkin Avenue and Thatford Avenue, in Brooklyn, Police Officer Christopher Desimone stopped the vehicle in which § 87(2)(b) and an individual were occupants.	A . Exonerated
B . POM Ibrahim Adam	Abuse: On Pitkin Avenue and Thatford Avenue, in Brooklyn, Police Officer Ibrahim Adam stopped the vehicle in which § 87(2)(b) and an individual were occupants.	B . Exonerated
C . SGT Gary Vanzanten	Abuse: On Pitkin Avenue and Thatford Avenue, in Brooklyn, Sergeant Gary Vanzanten stopped the vehicle in which § 87(2)(b) and an individual were occupants.	C . Exonerated
D . POM Christophe Desimone	Abuse: On Pitkin Avenue and Thatford Avenue, in Brooklyn, Police Officer Christophe Desimone frisked § 87(2)(b)	D . Exonerated
E . POM Ibrahim Adam	Abuse: On Pitkin Avenue and Thatford Avenue, in Brooklyn, Police Officer Ibrahim Adam frisked § 87(2)(b)	E . Exonerated
F . POM Christophe Desimone	Abuse: On Pitkin Avenue and Thatford Avenue, in Brooklyn, Police Officer Christophe Desimone searched the vehicle in which § 87(2)(b) and an individual were occupants	F . Exonerated
G . POM Ibrahim Adam	Abuse: On Pitkin Avenue and Thatford Avenue, in Brooklyn, Police Officer Ibrahim Adam searched the vehicle in which § 87(2)(b) and an individual were occupants.	G . Exonerated

Officer(s)	Allegation	Investigator Recommendation
H . POM Christophe Desimone	Abuse: On Sutter Avenue between Junius Street and Van Sinderen Avenue, in Brooklyn, Police Officer Christophe Desimone searched the vehicle in which § 87(2)(b) and an individual were occupants.	H . Unsubstantiated
I . POM Ibrahim Adam	Abuse: On Sutter Avenue between Junius Street and Van Sinderen Avenue, in Brooklyn, in Brooklyn, Police Officer Ibrahim Adam searched the vehicle in which § 87(2)(b) and an individual were occupants.	I . Unsubstantiated
J . SGT Gary Vanzanten	Abuse: On Sutter Avenue between Junius Street and Van Sinderen Avenue, in Brooklyn, Sergeant Gary Vanzanten refused to provide his shield number to § 87(2)(b)	J . Unsubstantiated

Case Summary

On October 27, 2017, § 87(2)(b) called the IAB Command Center generating IAB Log #17-42178, on behalf of herself, her brother § 87(2)(b) and her cousin § 87(2)(b). This complaint was forwarded to the CCRB on November 2, 2017.

On October 27, 2017, at approximately 11:30pm, PO Christopher Desimone, PO Ibrahim Adam, and Sgt. Gary Vanzanten, stopped the vehicle in which § 87(2)(b) and an unidentified male individual were occupants on Pitkin Avenue and Thatford Avenue, in Brooklyn (**Allegations A, B, and C: Abuse of Authority, § 87(2)(g)**). PO Desimone frisked § 87(2)(b) and PO Adam frisked § 87(2)(b) (**Allegations D and E: Abuse of Authority, exonerated**). PO Desimone and PO Adam then searched § 87(2)(b)'s vehicle (**Allegations F and G: Abuse of Authority, § 87(2)(g)**). § 87(2)(b) and the unidentified male individual were then allowed to leave the location with no summonses or arrests made. Approximately fifteen minutes later, on Sutter Avenue between Junius Street and Van Sinderen Avenue, in Brooklyn, PO Desimone and PO Adam searched § 87(2)(b)'s vehicle again (**Allegations H and I: Abuse of Authority, § 87(2)(g)**). § 87(2)(b) asked Sgt. Vanzanten for his shield number and he allegedly stated, "You don't need it." (**Allegation J: Abuse of Authority, § 87(2)(g)**).

There is no video evidence.

Findings and Recommendations

Allegation A: Abuse of Authority: On Pitkin Avenue and Thatford Avenue, in Brooklyn, Police Officer Christopher Desimone stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation B: Abuse of Authority: On Pitkin Avenue and Thatford Avenue, in Brooklyn, Police Officer Ibrahim Adam stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation C: Abuse of Authority: On Pitkin Avenue and Thatford Avenue, in Brooklyn, Sergeant Gary Vanzanten stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that Sgt. Vanzanten, PO Desimone, and PO Adam conducted a vehicle stop of § 87(2)(b)'s vehicle at Pitkin Avenue and Thatford Avenue, in Brooklyn on October 27, 2017. § 87(2)(g)

§ 87(2)(b) testified that on October 27, 2017, at approximately 11:30pm, she was driving her four door gray 2015 Mitsubishi Outlander Sport down Rockaway Avenue in Brooklyn, with her brother § 87(2)(b) in the front passenger seat, her cousin § 87(2)(b) in the rear driver seat, and an unidentified male individual in the rear passenger seat. At a red light on Rockaway Avenue and Pitkin Avenue, § 87(2)(b) was behind a vehicle that she felt was taking too long to drive, so she veered left in order to pass and go around this vehicle and then made a left onto Pitkin Avenue. § 87(2)(b) crossed over the double yellow traffic lines when she veered left to pass this vehicle. While driving on Pitkin Avenue, § 87(2)(b) observed a gray Ford Fusion activate NYPD lights and sirens. § 87(2)(b) pulled her vehicle over on Pitkin Avenue and observed three male plain clothes officers, identified via the investigation as Sgt. Vanzanten, PO Desimone, and PO Adam, approach her vehicle. (Board Review 01)

While the investigation did not obtain a sworn statement from § 87(2)(b) the undersigned was able to obtain an unverified phone statement from him. § 87(2)(b) stated on October 27, 2017, at approximately 11:30pm, he was in the rear driver seat of the vehicle that § 87(2)(b) was driving. § 87(2)(b) stated that as § 87(2)(b) was driving along Pitkin Avenue, she was pulled over by Sgt. Vanzanten, PO Desimone, and PO Adam. § 87(2)(b) did not know why they were pulled over and did not observe § 87(2)(b) commit any traffic infractions. (Board Review 06)

The investigation was also not able to obtain a sworn statement from § 87(2)(b) but the undersigned was able to obtain an unverified phone statement from him. § 87(2)(b)'s statement was consistent with § 87(2)(b)'s in regards to this allegation. (Board Review 07)

PO Desimone testified that on October 27, 2017 at approximately 11:30pm, he was driving southbound in the left most lane on Rockaway Avenue, in Brooklyn and was stopped at the red light on Rockaway Avenue with the cross street being Pitkin Avenue. While at this red light, PO Desimone noticed a gray Mitsubishi vehicle, identified via the investigation as belonging to § 87(2)(b) cross over the double yellow traffic lines into oncoming traffic, pull up to the side of his vehicle, and then simultaneously as the light turned green, make a left onto Pitkin Avenue. PO Desimone stated the aforementioned actions taken by the driver of the vehicle were traffic infractions: Crossing over the double yellow lines into oncoming traffic, and Reckless Driving. PO Desimone stated he made the decision to pull the vehicle over for the aforementioned traffic infractions. PO Desimone stated those were the only reasons he decided to initiate a vehicle stop. PO Desimone made the left onto Pitkin Avenue, and then activated the lights and sirens. PO Desimone observed the vehicle pull over quickly on Pitkin Avenue with the next cross street being Thatford Avenue. PO Desimone and his partners exited their vehicle and approached § 87(2)(b)'s vehicle; PO Desimone on the driver side and PO Adam on the passenger side, but PO Desimone did not recall which side Sgt. Vanzanten approached. (Board Review 02)

PO Adam's testimony was § 87(2)(g) the following § 87(2)(g): when he observed § 87(2)(b) cross over the double yellow traffic lines he observed her pass his police vehicle and then swerve right directly in front of their vehicle. When § 87(2)(b) pulled her vehicle over, PO Adam and PO Desimone approached her vehicle on the passenger side, while Sgt. Vanzanten approached on the driver side. (Board Review 03)

Sgt. Vanzanten's testified that while on Rockaway Avenue, he observed § 87(2)(b)'s vehicle directly behind them. He further observed this vehicle cross over the double yellow traffic lines into oncoming traffic, pull up to the side of his vehicle, and then make a left turn onto Pitkin Avenue again into oncoming traffic. Sgt. Vanzanten stated this vehicle committed the following traffic infractions by doing this: unsafe lane change, driving into oncoming traffic, reckless driving, and failure to signal. Sgt. Vanzanten stated the aforementioned traffic infractions were the only reasons they decided to stop the vehicle. When § 87(2)(b) pulled over, Sgt. Vanzanten and PO Desimone approached on the driver side, while PO Adam approached on the passenger side. (Board Review 04)

According to New York State Vehicle and Traffic Laws, Title VII, Article 25, Section 1126 (a) No-passing zones. When official markings are in place indicating those portions of any highway where overtaking and passing or driving to the left of such markings would be especially hazardous, no driver of a vehicle proceeding along such highway shall at any time drive on the left side of such markings. (Board Review 05)

§ 87(2)(g)

§ 87(2)(g)

Allegation D: Abuse of Authority: On Pitkin Avenue and Thatford Avenue, in Brooklyn, PO Christopher Desimone frisked § 87(2)(b)

Allegation E: Abuse of Authority: On Pitkin Avenue and Thatford Avenue, in Brooklyn, PO Ibrahim Adam frisked § 87(2)(b)

Allegation F: Abuse of Authority: On Pitkin Avenue and Thatford Avenue, in Brooklyn, Police Officer Christophe Desimone searched the vehicle in which § 87(2)(b) **and** § 87(2)(b) **were occupants.**

Allegation G: Abuse of Authority: On Pitkin Avenue and Thatford Avenue, in Brooklyn, Police Officer Ibrahim Adam searched the vehicle in which § 87(2)(b) **and** § 87(2)(b) **were occupants.**

It is undisputed that PO Desimone frisked § 87(2)(b) and PO Adam frisked § 87(2)(b). It is also undisputed that both of these officers searched § 87(2)(b)'s vehicle. § 87(2)(g)

§ 87(2)(b) testified that when the officers approached her vehicle, PO Desimone asked her for her driver's license, registration, and insurance card. § 87(2)(b) provided these documents to PO Desimone. PO Desimone then asked § 87(2)(b) to step out of the vehicle because she looked intoxicated and § 87(2)(b) complied. PO Desimone explained to § 87(2)(b) that she was pulled over because they observed her cross the double yellow lines on Rockaway Avenue. PO Desimone asked § 87(2)(b) to walk to the back of the vehicle towards Sgt. Vanzanten. Sgt. Vanzanten asked § 87(2)(b) if she was drinking or smoking because her eyes looked glossy. § 87(2)(b) told Sgt. Vanzanten that she was pregnant and she doesn't drink or smoke. PO Desimone then conducted a field sobriety test in that he asked § 87(2)(b) to follow his finger with her eyes without moving her head and to follow the light of his flashlight. § 87(2)(b) complied and passed. § 87(2)(b) then heard PO Desimone and PO Adam tell the remaining occupants to exit the vehicle because they smelled an odor of marijuana coming from inside the vehicle. § 87(2)(b) explained to the undersigned that she did not drink that night or smoke marijuana, and to her knowledge no one in her vehicle did. § 87(2)(b) also stated her vehicle did not smell like marijuana. § 87(2)(b) observed § 87(2)(b) exit the rear driver seat and observed PO Desimone use his hands to pat down § 87(2)(b)'s front pockets. § 87(2)(b) admitted she wasn't facing § 87(2)(b) when this happened but would periodically look over her shoulder towards § 87(2)(b).

§ 87(2)(b) to step out he observed the male passenger in the rear driver seat, § 87(2)(b) to 'blade' his body. When asked to describe 'blade' PO Desimone stated turning his body away from/turning his back to PO Desimone as if to hide something. PO Desimone then walked to the back of her vehicle and had § 87(2)(b) walk to him. PO Desimone then conducted a field sobriety test in that he made § 87(2)(b) follow his flashlight with her eyes. § 87(2)(b) passed the test.

PO Desimone then went back to the driver side of the vehicle and he and PO Adam asked the remaining male passengers to step out of the vehicle because they were going to search the vehicle. PO Desimone asked § 87(2)(b) to step out and he complied. PO Desimone frisked him, in that, he used his hands to pat down his jacket area, waist area and pants area. PO Desimone did not feel any weapons as a result of this frisk. PO Desimone stated the only reason he frisked this male passenger was for officer safety because since they intended to search the vehicle they wanted to make sure the passengers had no weapons on them for safety, and also because he observed this male blading his body so PO Desimone believed this passenger might have been hiding something. PO Desimone stated there was no other reason to make him believe this passenger had a weapon on him. PO Desimone did not observe any bulges on § 87(2)(b)'s person, but added that he had a jacket on so visibility of a bulge might have been reduced. PO Desimone and PO Adam then searched the vehicle as the passengers were outside towards the back of the vehicle with Sgt. Vanzanten. PO Desimone stated the only reason he searched the vehicle was because of the odor of marijuana. PO Desimone searched the driver seat, front passenger seat, and the rear seats. PO Desimone also searched under these seats and to the side of each seat. PO Adam searched the same areas in the vehicle. The search of the vehicle lasted approximately three- four minutes and provided negative results. PO Desimone and PO Adam then approached the rear of the vehicle and told the passengers to have a seat back in the vehicle. After discussing amongst themselves, it was decided that the traffic infractions that § 87(2)(b) committed would be warned and admonished. PO Desimone communicated this with § 87(2)(b) and told her she was free to leave.

Sgt. Vanzanten's testimony was § 87(2)(g) the following § 87(2)(g). As he approached the driver side he first smelled the odor of marijuana as soon as he got near the driver side window. Sgt. Vanzanten did not recall the details of the conversation between PO Desimone and § 87(2)(b) but stated during this conversation he was just standing near the rear driver side door. PO Desimone asked § 87(2)(b) to step out of the vehicle because she was suspected of Driving While Intoxicated, and Sgt. Vanzanten observed § 87(2)(b)'s bloodshot glossy eyes, when she exited the vehicle. Sgt. Vanzanten was in the back of the vehicle as PO Desimone conducted the field sobriety test on § 87(2)(b) while PO Adam was still on the passenger side of the vehicle during this time. Sgt. Vanzanten stated while § 87(2)(b) was in the back of her vehicle she did state she was three months pregnant and was drinking. As PO Desimone approached the rear driver seat of the vehicle, Sgt. Vanzanten stayed with § 87(2)(b) at the rear of the vehicle and informed her why she was stopped. Sgt. Vanzanten did not observe any of the occupants blade their bodies but was later informed by both officers that they observed the occupants turn their back and appear to hide something. Sgt. Vanzanten also stated he was later informed by the officers that the civilians gave them a hard time when exiting the vehicle, in that they didn't immediately exit the vehicle and the officers had to ask several times. When the occupants exited the vehicle, Sgt. Vanzanten observed PO Desimone frisk § 87(2)(b) and

observed and PO Adam frisk § 87(2)(b) Sgt. Vanzanten observed PO Desimone and PO Adam then search the vehicle for marijuana. Sgt. Vanzanten stated it was a quick search, a lot quicker and less extensive than usual because he didn't want to drag anything out since § 87(2)(b) was pregnant. After the vehicle search, Sgt. Vanzanten directed the passengers to go sit back in their vehicle. Sgt. Vanzanten had a discussion with his partners, and Sgt. Vanzanten decided to warn and admonish the traffic infractions.

PO Adam's testimony was § 87(2)(g) the following § 87(2)(g) PO Adam and PO Desimone approached on the driver side while Sgt. Vanzanten approached on the passenger side. As PO Desimone conversed with § 87(2)(b) PO Adam asked § 87(2)(b) to roll down his window and as soon as he did PO Adam smelled a strong odor of marijuana emanating from inside the vehicle. PO Adam could not hear PO Desimone's conversation with § 87(2)(b) but stated he knows PO Desimone asked her for her license, registration and insurance, and at some point § 87(2)(b) stated she was three months pregnant and was drinking earlier in the day. PO Adam observed § 87(2)(b) to have bloodshot glossy eyes when she stepped out her vehicle. As PO Desimone conducted the field sobriety test on § 87(2)(b) at the back of her vehicle, PO Adam was focused on the two rear passengers still. During this time, PO Adam observed them blading their bodies away from him as if they were hiding something, and hiding their hands. PO Adam stated he told them, "Let me see your hands. Keep your hands out", several times. PO Adam stated the rear passengers did not comply and just ignored him. After § 87(2)(b) passed the sobriety test, PO Desimone walked to the front passenger side of the vehicle, while Sgt. Vanzanten stayed in the back of the vehicle with § 87(2)(b) PO Adam and PO Desimone asked the remaining occupants to step out of the vehicle and PO Adam frisked § 87(2)(b) in that he used his open palms to pat down the following areas: chest, waist and leg area. PO Adam's reasoning for frisking § 87(2)(b) was consistent with PO Desimone's reasoning. After the frisks the occupants walked to the back of the vehicle where Sgt. Vanzanten was standing with § 87(2)(b) At this time, PO Adam and PO Desimone then searched the vehicle. The odor of marijuana was still present as they searched the vehicle. PO Adam's reasoning for searching the vehicle was consistent with PO Desimone's. After the vehicle search, the officers walked to the back of the vehicle, and PO Desimone informed § 87(2)(b) to drive safely.

Stop Report § 87(2)(b) prepared by PO Desimone for this incident, documented the following in the Narrative section of the report: Vehicle was searched due to odor of marijuana coming from vehicle. (Board Review 08) Stop Report § 87(2)(b) also prepared by PO Desimone for this incident, documented in the Narrative Section of the report the following: Individual was frisked due his refusal to step out of the vehicle. Individual was also blading his body inside the vehicle, attempting to hide his right side, appearing to conceal firearm on his person or inside vehicle. (Board Review 09) Stop Report § 87(2)(b), prepared by PO Adam for this incident, documented the following in the Narrative Section: Individual was frisked due to his refusal to step out of the vehicle after strong odor of marijuana coming from vehicle. Individual was also blading his body inside the vehicle appearing to hide his left side appearing to conceal firearm on his person or car. (Board Review 10)

When an officer detects the odor of marijuana emanating from a vehicle during a lawful vehicle stop, they have probable cause to search the vehicle and its occupant(s) for drugs. People v. Smith, 66 A.D.3d 514 (Board Review 11) The smell of marijuana smoke alone is sufficient to provide police officers with probable cause to search an automobile and its occupants. People v. Chestnut, 43 A.D.2d 260. (Board Review 12)

§ 87(2)(g)

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§ 87(2)(g)

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§ 87(2)(g)

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Allegation H: Abuse of Authority: On Sutter Avenue between Junius Street and Van Sinderen Avenue, in Brooklyn, Police Officer Christophe Desimone searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation I: Abuse of Authority: On Sutter Avenue between Junius Street and Van Sinderen Avenue, in Brooklyn, Police Officer Ibrahim Adam searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that PO Desimone and PO Adam searched § 87(2)(b)'s vehicle on Sutter Avenue between Junius Street and Van Sinderen Avenue, in Brooklyn. § 87(2)(g)

§ 87(2)(b) testified that when the officers left the location, § 87(2)(b) and the unidentified male walked away from the location, while § 87(2)(b) stayed with her. While § 87(2)(b) was driving she realized that she did not have her driver's license, registration or insurance card. § 87(2)(b) pulled over on Sutter Avenue between Junius Street and Van Sinderen Avenue, in Brooklyn and called 911 to report that she did not get her documents back. While she was on the phone, she observed PO Desimone, PO Adam, and Sgt. Vanzanten driving up the same block she was on. § 87(2)(b) hung up the phone and waved the officers down and told them that they never returned her documentation. The officers responded yes they did and the documents were put on her driver's seat but stated that they will go back to the initial location to look for it. PO Desimone and PO Adam drove their vehicle back to Pitkin Avenue and Thatford Avenue to look for the documentation while Sgt. Vanzanten stayed on Sutter Avenue. A few minutes later PO Desimone and PO Adam came back to the scene and informed § 87(2)(b) they could not find her documents. PO Desimone and PO Adam then began to look inside the front and rear areas of § 87(2)(b)'s vehicle for the documents. § 87(2)(b) stated she did not give them permission to do this and they did not ask her to do this. § 87(2)(b) was outside the vehicle at this point on the sidewalk. PO Desimone and PO Adam searched the vehicle for approximately two minutes, but again did not find § 87(2)(b)'s documents. PO Desimone and PO Adam then left the location again to go look for the documents at Pitkin Avenue and Thatford Avenue.

§ 87(2)(g) § 87(2)(b) did not recall if any officer searched § 87(2)(b)'s vehicle at this location but stated he observed § 87(2)(b) speaking to the three officers about her missing documentation.

At this point during the incident, § 87(2)(b) had already walked away and was no longer involved.

PO Desimone testified that approximately fifteen minutes after leaving Pitkin Avenue and Thatford Avenue, he observed § 87(2)(b) pulled over on Sutter Avenue and Junius Street and observed her looking through her vehicle. PO Desimone stated that the other male passengers were there also but he did not recall what they were doing. § 87(2)(b) waved PO Desimone down, while stating, "I don't have my I.D., I don't have my I.D." PO Desimone pulled over and § 87(2)(b) explained to him that she cannot find her I.D. or her registration. § 87(2)(b) asked PO Desimone if he still had them and PO Desimone stated no and that he put everything on the driver seat of her vehicle. PO Desimone looked for the documents on his person and in his police vehicle but did not find them. PO Desimone then asked her if she can check her vehicle and check in between the seats and explained to her the documents have to be somewhere in the

vehicle. § 87(2)(b) again stated it's not inside her vehicle and stated she does not have her I.D. PO Desimone and PO Adam then drove back to Pitkin Avenue and Thatford Avenue while Sgt. Vanzanten stayed at the scene with § 87(2)(b). PO Desimone and PO Adam looked at the spot where the stop occurred, across the street, up and down the block and the neighboring blocks but could not find any documents. After this, PO Desimone and PO Adam headed back to the Sutter Avenue and Junius Street and observed § 87(2)(b) still on scene. PO Desimone approached her and told her that he looked for the documents at the initial location, but they were not there. § 87(2)(b) kept saying she doesn't have them. PO Desimone asked § 87(2)(b) if he could check her vehicle for the documents because maybe they fell between the seats, and § 87(2)(b) stated, "Yea go ahead." PO Desimone took this to mean that § 87(2)(b) gave him permission to search the vehicle for the documents. PO Desimone then searched the driver seat, front passenger seat, the rear passenger seats, and also under these seats of the vehicle but could not find them either. PO Desimone stated this search was only limited to looking for § 87(2)(b)'s missing documents and added that he was just trying to help her. PO Desimone did not recall if PO Adam searched the vehicle.

PO Adam's testimony was § 87(2)(g) the following § 87(2)(g) when PO Desimone told § 87(2)(b) it was possible she misplaced the documents in her vehicle and asked if she wanted them to help her look, § 87(2)(b) stated, "Yes. Find it for me." PO Adam took this to mean § 87(2)(b) was giving them permission to search her vehicle for the missing documents. PO Adam and PO Desimone then searched the vehicle by looking in-between the cracks of the driver seat, and under the driver seat for approximately one minute but did not find the missing documents.

Sgt. Vanzanten testified that after § 87(2)(b) explained she could not find her documents, PO Desimone asked § 87(2)(b) if she wanted him to search her vehicle for the documents since he put it on her front seat, and § 87(2)(b) stated, "Yes." PO Desimone's search yielded negative results.

§ 87(2)(g)
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§ 87(2)(g)

Allegation J: Abuse of Authority: On Sutter Avenue between Junius Street and Van Sinderen Avenue, in Brooklyn, Sergeant Gary Vanzanten refused to provide his shield number to § 87(2)(b)

It is undisputed that § 87(2)(b) asked Sgt. Vanzanten for his shield number during their interaction. § 87(2)(g)

§ 87(2)(b) stated after PO Desimone and PO Adam came back from searching Pitkin Avenue and Thatford Avenue the second time they came up to her and asked how they could help her. § 87(2)(b) asked for their names and shield numbers to which each officer provided them to her. § 87(2)(b) then asked Sgt. Vanzanten for his name and he provided his name to her. When § 87(2)(b) asked for his shield number Sgt. Vanzanten stated, “You don’t need it.”

Sgt. Vanzanten testified that while PO Desimone and PO Adam were still at Pitkin Avenue and Thatford Avenue searching for § 87(2)(b)’s missing documents, § 87(2)(b) asked him for his name and shield. Sgt. Vanzanten provided both his name and shield number to her. Sgt. Vanzanten was asked by the undersigned if he stated, “You don’t need it”, to § 87(2)(b) when she asked him for his shield number and Sgt. Vanzanten stated he did not say that. § 87(2)(b) then asked for his partners’ names and shield numbers and Sgt. Vanzanten told her that he will have them personally give it to her when they returned to the location.

PO Desimone and PO Adam both testified that they did not hear § 87(2)(b) ask for Sgt. Vanzanten’s shield number and did not hear Sgt. Vanzanten refuse to provide his shield number to § 87(2)(b). They both stated that Sgt. Vanzanten never informed either of them that he refused to provide his shield number to § 87(2)(b) and neither PO Desimone nor PO Adam ever heard § 87(2)(b) complain about Sgt. Vanzanten refusing to provide his shield number.

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party. (Board Review 13)
- This is the first CCRB complaint to which § 87(2)(b) has been a party. (Board Review 14)
- § 87(2)(b) has been a party to one other CCRB complaint and has been named the victim in one allegation: (Board Review 15)
 - § 87(2)(b)
- PO Christopher Desimone has been a member of service for two years and has been the subject in five CCRB complaints and 12 allegations, none of which were substantiated.
§ 87(2)(g)
- PO Ibrahim Adam has been a member of service for two years and this is the first CCRB complaint to which he has been a subject.
- Sgt. Gary Vanzanten has been a member of service for fourteen years and has been the subject in 14 CCRB complaints and 32 allegations, none of which were substantiated.
§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of March 13, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 08

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date